

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 10

Honorable Jeffrey B. El-Hajj

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: May 26, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

Line 5	25CV475988	Emory Street Partners, LLC v. Dana Hendricks et al.	Plaintiff Emory Street Partners, LLC's motion to compel depositions and the production of documents for four individuals or entities: defendant Dana Hendricks; the person most knowledgeable of defendant Vermont Street Partners, LLC; Margaret Hendricks; and the person most knowledgeable of Grand Lake Partners, LLC. (Code Civ. Proc., § 2025.450.) Notice is proper and the motion is unopposed. Failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c).) Failure to oppose a motion leads to the presumption that the non-moving party has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489.) The depositions of Margaret Hendricks; and the person most knowledgeable of Grand Lake Partners, LLC, were noticed when they were not parties to the case. Margaret Hendricks and Grand Lake Partners, LLC were added as defendants by order in February 2026. Margaret Hendricks and Grand Lake Partners, LLC have motions to quash service of summons set for hearing in October 2026. But those motions to quash do not insulate them from attending a deposition because depositions are not limited to parties to an action. (Code Civ. Proc., § 2025.010.) Plaintiff's motion and supporting evidence indicate that the four depositions were properly noticed; that no objection or motion for protective order was raised or filed before the deposition dates; and that no individual appeared for any deposition. On good cause shown, the motion is GRANTED. The following individuals and entities are compelled to appear for depositions no later than July 17, 2026: defendant Dana Hendricks; the person most knowledgeable of defendant Vermont Street Partners, LLC; Margaret Hendricks; and the person most knowledgeable of Grand Lake Partners, LLC. Those individuals and entities must produce the documents identified in the notices of deposition previously served by plaintiff without objections. Plaintiff's request for sanctions is GRANTED IN PART. Mandatory sanctions are imposed
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			jointly and severally against Dana Hendricks and Vermont Street Partners, LLC, in the amount of \$7,996.25 (consisting of \$4,296.25 in court reporter costs; \$2,700 in attorney fees (nine hours at \$300/hour); and \$1,000 in paralegal fees (10 hours at \$100/hour)). The court will prepare the order.
Line 6	16CV291493	Dung Dao et al. v. Mai Vu et al.	Motion by plaintiffs Dung Hanh Dao and Hoan Minh Nguyen to enforce and clarify judgment. The court signed a stipulation and order on May 22, 2026, granting the relief requested in the motion. The motion is DENIED AS MOOT and the matter is taken OFF CALENDAR.

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9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	23CV413023	UHG I LLC v. Jewel Wright	Claim of exemption by judgment debtor Jewel Wright related to wage garnishment. Notice is proper, and the judgment debtor has the burden of proof. The claim is GRANTED. Wright's income declaration indicates income below the legal minimum amount for an earnings withholding order. (Code Civ. Proc., § 706.050.) The court will prepare the order.
Line 2	24CV434918	LVNV Funding LLC v. Dongsuk Yoo	Claim of exemption by judgment debtor Dongsuk Yoo related to wage garnishment. Notice is proper, and the judgment debtor has the burden of proof. The claim is GRANTED. Yoo's income declaration indicates income below the legal minimum amount for an earnings withholding order. (Code Civ. Proc., § 706.050.) The court will prepare the order.

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